

State of North Dakota

In District Court

County of _____

_____ Judicial District

participant/case info review zone

Plaintiff,

VS

Defendant.

)
)
)
)
)
)

Case No.

Findings of Fact,
Conclusions of Law, and
Order on Motion to
Prohibit Public Access

1. The moving party, the (choose one) ☐ Plaintiff ☐ Defendant ☐ Victim ☐ Other (if you chose "other", state relationship) _____, submitted a Motion to Prohibit Public Access to the records in the above-captioned case(s) under [N.D.Sup.Ct.Admin.R. 41, Section 4\(a\)](#) and [N.D.R.Ct. 3.4\(c\)](#).

2. In the above Motion, the moving party also requested that the documents be labeled (check one) ☐ sealed/ ☐ confidential under [N.D.Sup.Ct.Admin.R. 41, Section 4\(a\)](#) and [N.D.R.Ct. 3.4\(c\)](#).

3. The (choose one) ☐ Plaintiff ☐ Defendant ☐ Victim ☐ Other (if you chose "other", state relationship) _____ responded to the Motion. The court considered the Motion and decided it on Briefs under Rule 3.2 of the North Dakota Rules of Court.

Findings of Fact

4. The Court finds there are there are sufficient grounds to overcome the presumption of openness of court records in the above-named case to allow public access to the moving party's records to be prohibited.

5. The Court further finds the request that the documents be labeled ☐ sealed/

signature/date review zone

☐ confidential is justified.

6. The following specific facts show that public interest in maintaining open public access to the records of the above-captioned case(s) is minimal.

- a. _____

- b. _____

- c. _____

- d. _____

- e. _____

- f. _____

7. The following specific facts show that the moving party has sustained or is likely to sustain the following substantial harms because the records in the above-captioned case(s) have remained available for public access (*Paragraph 7 continues on page 3*).

- a. _____

- b. _____

- c. _____

- d. _____

- e. _____

- f. _____

8. The following specific facts show that the request that the documents be labeled ☐sealed/ ☐ confidential under [N.D.Sup.Ct.Admin.R. 41, Section 4\(a\)](#) and [N.D.R.Ct. 3.4\(c\)](#), is justified.

- a. _____

- b. _____

- c. _____

- d. _____

- e. _____

Conclusions Of Law

9. There is an overriding interest in protecting the moving party from further harm by restricting public access to the records in the above-captioned case(s).
10. There is a minimal interest in maintaining public access to the records in the above-captioned case(s).
11. There is an overriding interest that the documents be labeled ☐ sealed/ ☐ confidential.

Order

Based on the above, the clerk of court is ordered to promptly:

- a. ☐ Prohibit access to the entire case.
- b. ☐ (i) Restrict access to all of the documents listed in the Moving Party's Brief.
- ☐ (ii) Restrict access to all of the documents listed in the Moving Party's Brief except for the following:

c. ☐ (i) Redact all of the information from the documents as listed in the Moving Party's Brief.

☐ (ii) Redact all of the information from the documents as listed in the Moving Party's

Brief except for the following:

d. ☐ (i) Label all documents as ☐ sealed/ ☐ confidential.

District Judge